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CASE #	CASE NAME	HEARING NAME
CVRI2200117	CHAVEZ vs BELTRAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling:

Hearing is vacated. On 7/16/26, the court provided a briefing schedule for filing of motions, to date no motions have been filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501012	BURKE vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the amount of \$25,250.50 and costs in the amount of \$1,324.71, for a total of \$26,575.21.

Under Civ. Code § 1794(d), if the buyer prevails in an action under the Song-Beverly Act, the buyer shall be allowed to recover "a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d).) There is no dispute that Plaintiff is the prevailing party and is entitled to reasonable attorney fees. The only question is the amount of the award.

In determining the reasonable amount, the court first determines a lodestar figure (time reasonably spent multiplied by a reasonable hourly rate) and may then adjust. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) Attorney fee awards should be fully compensatory. (*Id.* at 1133.) However, a fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The reasonableness of attorney fees is within the sound discretion of the trial court. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

"A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 34 [internal quotation marks & quotation omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, "then the court must take this into account and award attorney fees in a lesser amount." (*Id.*)

As to litigation costs, under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the court's discretion under section 1033.5(c)(4). A verified memorandum of

costs is prima facie evidence that items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them unnecessary or unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

Plaintiff seeks hourly rates ranging from: Anthony Greco, Esq. at \$595/hour; Christopher Urner, Esq. at \$525/hour; Jorge L. Acosta, Esq. at \$450/hour; and Paralegal Daniel Alvarado at \$250/hour. A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*Ketchum, supra*, 24 Cal.4th at 1133.) GM does not challenge Plaintiff’s hourly rates.

Plaintiff seeks 49.7 hours of attorney and paralegal work totaling \$26,143.00. GM challenges the hours billed on several grounds, arguing that: (1) Plaintiff over-litigated by way of an unnecessary demurrer; (2) Plaintiff’s billing records contain duplicate entries and excessive time spent on certain tasks; (3) attorneys performed administrative work that should have been delegated to paralegals; (4) work was performed by a higher-billing attorney that could have been performed by a lower-billing attorney; and (5) the estimated fees for reviewing the opposition, preparing a reply, and attending the hearing are speculative. Each category of GM’s challenges is addressed below.

Demurrer to Answer

GM argues that Plaintiff’s demurrer to GM’s Answer was unnecessary overlitigation designed to inflate fees and that The Lemon Pros, LLP has a repeated practice of demurring to answers in lemon law cases that overwhelmingly settle at mediation, which GM contends is nothing more than an attempt to increase billable hours for an ultimate attorney fee award.

Plaintiff filed a Complaint on February 27, 2025. GM did not file an Answer until June 6, 2025, after Plaintiff’s counsel had sought resolution over approximately two months, according to Plaintiff. (Greco Decl. ¶ 15.) GM’s Answer asserted affirmative defenses claiming that Plaintiff was responsible for the problems with the Vehicle. (*Id.* at ¶ 16.) Plaintiff’s counsel sought to meet and confer regarding the factual bases for these affirmative defenses, and when those efforts did not resolve the dispute, Plaintiff filed a demurrer. (*Id.*) The Court sustained Plaintiff’s demurrer in part. (See Court’s Tentative Ruling dated July 16, 2025.)

The billing records reflect time spent on meet and confer efforts, drafting the notice of demurrer, memorandum of points and authorities, supporting declaration, reviewing an opposition, drafting a reply, reviewing the tentative ruling, communicating with the client regarding the favorable ruling, and preparing a notice of order. (Greco Decl. ¶ 20, Ex. A.) This time is reasonable for a demurrer that required these tasks and was partially successful. Thus, no reduction is warranted for demurrer-related work.

Duplicative or Excessive Time

GM argues that Plaintiff’s billing records contain multiple duplicate entries and excessive time spent on certain tasks, referring to yellow and blue highlighted portions

of Exhibit A to the Declaration of Evan T. Martin. However, as Plaintiff correctly notes in reply, Exhibit A to the Martin Declaration appears to be the sales contract for Plaintiff's Vehicle, not an annotated billing statement. (Martin Decl. ¶ 4, Ex. A.) GM's failure to attach or provide the actual annotated billing records it references makes it impossible for the Court or Plaintiff to respond to these specific challenges. GM's general assertion of duplication without citation to particular entries, dates, or amounts is insufficient to meet its burden as the challenging party. (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564 ["it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence"].)

Moreover, an independent review of Plaintiff's billing statement does not reveal any evidence of significant duplication. (See Greco Decl. ¶ 20, Ex. A.) While there are multiple entries for client communications and case status updates, the descriptions are specific to different tasks performed on different dates. Thus, no reduction is warranted for alleged duplication.

Administrative Work Performed by Attorneys

GM argues that attorneys performed simple administrative work that should have been delegated to paralegals and billed at \$250/hour rather than attorney rates, citing as examples "drafting a notice of deposition" and "gathering and filing documents." (Def.'s Opp. 7:4–8.) However, GM again fails to specify which entries it challenges or provide calculations showing what reduction it seeks.

An independent review of Plaintiff's billing statement shows that the paralegal performed substantial work on this case (7.6 hours), including reviewing documents, preparing the case file, drafting notices, communicating with the client, and assisting with document production. (Greco Decl. ¶ 20, Ex. A.) The division of labor between attorneys and paralegal appears appropriate. Thus, no reduction is warranted for alleged administrative work by attorneys.

Higher-Billing Attorney Delegation

GM argues that work was performed by Mr. Greco at \$595/hour that could have been performed by lower-billing attorney Mr. Urner at \$525/hour. However, Mr. Greco was the assigned lead attorney on this case from the outset. (Greco Decl. ¶¶ 1, 8.) The billing records show that Mr. Greco handled substantive legal work including client communications regarding settlement negotiations, analysis of repair records and initial disclosures, drafting the demurrer, preparing the mediation brief, and negotiating settlement terms. (*Id.* at ¶ 20, Ex. A.) Mr. Urner's time reflects his role as managing attorney reviewing the case at intake, handling estimated time for the fee motion reply and hearing, and supervising the matter. (*Id.* at ¶ 8.) The division of work between these two attorneys is reasonable. Thus, no reduction is warranted based on attorney delegation.

Estimated Fees for Reply and Hearing

GM challenges 6.5 hours of estimated time by Mr. Urner at \$525/hour (\$3,412.50) for reviewing the opposition (1.5 hours), preparing a reply (3 hours), reviewing the file in preparation for the hearing (1 hour), and attending the hearing (1 hour), arguing these fees are speculative and should be stricken.

A prevailing party is entitled to recover fees incurred in litigating the fee application. “[A]bsent circumstances rendering the award unjust, fees recoverable ordinarily include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim.” (*Ketchum, supra*, 24 Cal.4th at 1141; *Serrano, supra*, 32 Cal.3d at 639.)

While time spent on a fee motion is recoverable, 1.5 hours to review a six-page opposition is excessive. The Court reduces this to 0.8 hours. Similarly, 3 hours for a reply brief is high given that much of Plaintiff’s reply addresses GM’s failure to provide specific challenges. The Court reduces reply time to 2.0 hours. The requested 1 hour to review the file and prepare for the hearing, and 1 hour for hearing attendance, are reasonable. The Court therefore reduces the estimated attorney time from 6.5 hours to 4.8 hours and reduce fees by 1.7 hours (\$892.50).

MULTIPLIER

Plaintiff requests a 0.3 lodestar enhancement (\$7,842.90), citing the delay in payment, expertise resulting in an excellent recovery, and the risk of taking this case on a contingent fee basis. Once the lodestar is calculated, the court may adjust the figure upward or downward based on factors including the novelty and difficulty of the questions involved, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment, and the contingent nature of the fee award. (*Ketchum, supra*, 24 Cal.4th at 1132.) However, a multiplier is not automatic; the trial court must consider whether an enhancement is necessary to compensate at fair market value. (*Id.* at 1139.)

Here, the Court has already approved hourly rates that account for the contingent nature of the representation. The rates were found reasonable for contingency lemon law work in Riverside County—rates that, as Plaintiff’s own evidence demonstrates, already reflect the premium the market commands for contingency risk. (See Pl.’s Mot. 13:3–9; Greco Decl. ¶ 10, Ex. C.) To apply an additional 0.3 multiplier on top of rates already calibrated to contingency work would result in double-counting the contingency factor. Further, this was a straightforward Song-Beverly action that resolved through mediation within approximately four months of GM’s Answer. It did not involve novel legal questions and did not preclude other employment by counsel. Accordingly, the Court denies the requested 0.3 lodestar enhancement.

LITIGATION COSTS

Plaintiff seeks \$1,324.71 in costs and expenses. GM does not dispute Plaintiff's costs. A verified memorandum of costs is prima facie evidence that the items listed are properly chargeable. (*Nelson, supra*, 72 Cal.App.4th at 131.) Where the opposing party does not challenge costs, the Court has no basis to reduce them.